



CHAPTER 6.

An Act to reduce certain duties of excise chargeable
in respect of goods vehicles driven by gas or
steam. [31st January 1940.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) Paragraph 5 of the Second Schedule to the Finance Act, 1920 (which relates to excise duties on mechanically propelled goods vehicles), shall have effect subject to the amendments hereafter specified in this section; and that paragraph is hereafter in this section referred to as "the principal paragraph".

Reduction
of duties on
gas and
steam
vehicles.
10 & 11
Geo. 5. c. 18.

(2) For the purpose of computing the rate of the duty chargeable under any provision of the principal paragraph in respect of a goods vehicle, the weight unladen of the vehicle shall, if the vehicle carries a container for holding gas for the propulsion of the vehicle, or plant for producing such gas, be reduced—

- (a) where the weight unladen exceeds twelve hundred-weight but does not exceed three tons, by half a ton;
- (b) where the weight unladen exceeds three tons but does not exceed six tons, by three-quarters of a ton;
- (c) where the weight unladen exceeds six tons, by one ton.

CH. 6. *Gas and Steam Vehicles* 3 & 4 GEO. 6.
(*Excise Duties*) Act, 1940.

(3) Notwithstanding that a goods vehicle is used for drawing a trailer, the vehicle shall not be chargeable with duty under sub-paragraph (d) of the principal paragraph if the trailer is used solely for the carriage of—

- (a) a container for holding gas for the propulsion of the vehicle; or
- (b) plant and materials for producing such gas.

(4) Sub-paragraph (c) (ii) of the principal paragraph (which relates to goods vehicles propelled by steam or constructed or adapted to use coal gas as fuel) shall have effect as if the word "gas" were substituted for the words "coal gas".

(5) The rates of duty chargeable under the said sub-paragraph (c) (ii) as amended by this section shall, in the case of vehicles not exceeding one-and-a-half tons in weight unladen, be as follows:—

Not exceeding 12 cwt. in weight unladen	-	£10
Exceeding 12 cwt. but not exceeding 1 ton		
in weight unladen	- - - -	£15
Exceeding 1 ton but not exceeding 1½ tons		
in weight unladen	- - - -	£20

(6) For the purpose of this section and the principal paragraph as amended by this section, the expression "gas" shall mean any fuel which is wholly gaseous at a temperature of sixty degrees Fahrenheit under a pressure of thirty inches of mercury.

(7) References in this section to the principal paragraph shall be construed as references to that paragraph as amended by section twenty-five of, and Part III of the Seventh Schedule to, the Finance Act, 1933, and any subsequent enactment.

23 & 24
Geo. 5. c. 19.

Short title
and com-
mencement.

2.—(1) This Act may be cited as the Gas and Steam Vehicles (Excise Duties) Act, 1940.

(2) This Act shall be deemed to have come into operation on the first day of January nineteen hundred and forty.

Printed by EYRE AND SPOTTISWOODE LIMITED

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